

SUPREME COURT OF THE CITY OF NEW YORK
COUNTY OF KINGS

-----X
WILSON NIN,

Plaintiff,

- against -

THE CITY OF NEW YORK, a municipal entity,
and, NEW YORK CITY POLICE OFFICER
DANIEL CASTRONOVA, NEW YORK CITY
POLICE OFFICER DEREK ALMEIDA, NEW
YORK CITY POLICE OFFICERS "JOHN
DOES 1-5",

Defendants.
-----X

: INDEX #

: JURY TRIAL DEMANDED

: VERIFIED COMPLAINT

Plaintiff Wilson Nin, by his attorneys, Stecklow Cohen & Thompson,
complaining of the defendants, respectfully alleges as follows:

I. PRELIMINARY STATEMENT

1. Plaintiff Wilson Nin brings this action for compensatory damages,
punitive damages and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988
for violations of his civil rights, as said rights are secured by said statutes and the
Constitutions of the State of New York and the United States.

II. JURISDICTION & VENUE

2. Venue is proper for the Kings County Supreme Court of the city of New
York pursuant to CPLR § 503 as the Incident described herein occurred in Kings County,
New York.

3. Venue is proper for the Kings County Supreme Court as Plaintiff Wilson Nin suffered damages that exceed the jurisdictional amount of all lower courts of the state of New York.

4. Plaintiff Wilson Nin has also complied with N.Y. General Municipal Law §50-E by serving a notice of claim upon the Defendants within ninety (90) days of the date of the incident. More than 30 days have elapsed since said claim was presented and the claim has not been satisfied.

III. JURY DEMAND

5. Plaintiff respectfully demands a trial by jury of all issues in this matter.

IV. THE PARTIES

6. At all times relevant herein Plaintiff Wilson Nin was a resident of the State of New York.

7. Defendant THE CITY OF NEW YORK was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

8. Defendant THE CITY OF NEW YORK maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, THE CITY OF NEW YORK.

9. At all times, Defendant POLICE OFFICER DANIEL CASTRONOVA (Shield No. 27956), was a duly sworn police officer of said department and was acting under the supervision of said department and according to his official duties. Plaintiff

Wilson Nin asserts his claims against Defendant POLICE OFFICER CASTRONOVA in his official and individual capacities.

10. At all times, Defendant POLICE OFFICER DEREK ALMEIDA (Shield No. 25236) (together with P.O. CATRONOVA, "the INDIVIDUAL DEFENDANTS"), was a duly sworn police officer of said department and was acting under the supervision of said department and according to his official duties. Plaintiff Wilson Nin asserts his claims against Defendant POLICE OFFICER ALMEIDA in his official and individual capacities.

11. At all times, the Defendant New York City Police Officers "John Does 1-5" (collectively, "the Defendant "John Doe" POLICE OFFICERS"; and together with the INDIVIDUAL DEFENDANTS, "the DEFENDANT OFFICERS"), were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties. Plaintiff Wilson Nin asserts his claims against each officer in both their official and individual capacities.

12. Plaintiff Wilson Nin will amend this complaint to name the Defendant "John Doe" POLICE OFFICERS as further information regarding their identities becomes available to Plaintiff.

13. At all times relevant to this action, all of the DEFENDANT OFFICERS, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

14. Each and all of the acts of the DEFENDANT OFFICERS alleged herein were done by said defendants while acting within the scope and in furtherance of their employment by Defendant THE CITY OF NEW YORK.

V. FACTS COMMON TO ALL CLAIMS

15. On or about January 23, 2012, at approximately 9:00am, the Plaintiff Wilson Nin was riding his bicycle along Stanhope Street in Brooklyn, NY.

16. The Plaintiff turned onto Bushwick Avenue.

17. As the Plaintiff proceeded, the door of a van ("the van") opened suddenly in front of him.

18. Upon information and belief, the van was an NYPD vehicle, and the door that nearly collided with the Plaintiff was opened by one of the INDIVIDUAL DEFENDANTS. Shortly thereafter, the Plaintiff swerved in order to avoid hitting the van's open door.

19. Following the near-accident, the Plaintiff stopped his bicycle near the rear of the van.

20. Defendant POLICE OFFICER CASTRONOVA and Defendant POLICE OFFICER ALMEIDA approached the Plaintiff.

21. The INDIVIDUAL DEFENDANTS pushed the Plaintiff to the ground.

22. The INDIVIDUAL DEFENDANTS handcuffed the Plaintiff.

23. At no point did Plaintiff Wilson Nin resist arrest.

24. The INDIVIDUAL DEFENDANTS repeatedly punched the Plaintiff while he lay handcuffed on the ground.

25. Defendant POLICE OFFICER CASTRONOVA punched the Plaintiff multiple times in the face.

26. At no point did the Plaintiff Wilson Nin resist Defendants' attack -- indeed, the handcuffed 63-year-old Plaintiff was utterly incapable of resisting, or of protecting himself.

27. The INDIVIDUAL DEFENDANTS picked the Plaintiff up by his handcuffs and legs.

28. The INDIVIDUAL DEFENDANTS threw the Plaintiff into the back of the van.

29. The INDIVIDUAL DEFENDANTS threw the Plaintiff's bicycle on top of Plaintiff.

30. The Plaintiff was transported to The 83rd Precinct ("The Precinct").

31. There, the DEFENDANT OFFICERS strip-searched the Plaintiff, requiring him to remove all his clothing

32. The Plaintiff was detained in a holding cell within The Precinct overnight.

33. The Plaintiff was transported to Central Booking.

34. At Central Booking, the Plaintiff was detained for approximately twenty-four (24) hours.

35. When the Plaintiff was released he went to the hospital.

36. At the hospital the Plaintiff found out that he had sustained broken bones in his face, around his eyes and nose.

37. Among other injuries, the Plaintiff suffered head trauma, diplopia and vision impairment, pain and significant swelling and periorbital ecchymosis about the head and face, and an orbital wall fracture of the Plaintiff's skull.

38. Plaintiff suffered significant and painful injuries as a result of the DEFENDANT OFFICERS' conduct.

39. Throughout the foregoing wrongful acts committed against Plaintiff, the DEFENDANT OFFICERS had the opportunity to intervene on Plaintiff's behalf to prevent the violation of his constitutional rights, but did not.

40. Plaintiff suffered significant and painful injuries as a result of the DEFENDANT OFFICERS' conduct.

41. Plaintiff suffered and suffers fear, anguish, and humiliation as a result of the DEFENDANT OFFICERS' conduct.

42. In sum, as a result of the foregoing, Plaintiff sustained, *inter alia*, personal injuries, physical pain, mental injuries, emotional distress, embarrassment, humiliation, costs and expenses, and deprivation of his constitutional rights.

43. As such, Plaintiff Wilson Nin demands judgment against the Defendants in an amount to be determined at trial.

FIRST CLAIM FOR RELIEF

STATE LAW – BATTERY AGAINST THE INDIVIDUAL DEFENDANTS

44. Plaintiff Wilson Nin repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

45. The INDIVIDUAL DEFENDANTS committed battery upon the Plaintiff in their act of making bodily contact with Plaintiff by subjecting him to excessive force in the manner described herein.

46. The INDIVIDUAL DEFENDANTS performed these acts of making bodily contact with Plaintiff with the intent to do so.

47. The INDIVIDUAL DEFENDANTS' acts of making bodily contact with Plaintiff were subjectively offensive in nature to Plaintiff.

48. The INDIVIDUAL DEFENDANTS' acts of making bodily contact with Plaintiff would be objectively offensive in nature to a reasonable person aware of the circumstances of the INDIVIDUAL DEFENDANTS' interaction with Plaintiff.

49. The INDIVIDUAL DEFENDANTS performed these acts of making bodily contact with Plaintiff without privilege or consent from Plaintiff.

50. As a result of the INDIVIDUAL DEFENDANTS' non-consensual and unprivileged physical contact, Plaintiff was caused to suffer personal injuries, physical pain, mental injuries, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, costs and expenses, and deprivation of his constitutional rights.

51. As a result of the foregoing, Plaintiff Wilson Nin is entitled to compensatory damages and punitive damages against Defendants in an amount to be determined at trial.

SECOND CLAIM FOR RELIEF

STATE LAW – ASSAULT AGAINST THE INDIVIDUAL DEFENDANTS

52. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

53. The INDIVIDUAL DEFENDANTS assaulted Plaintiff by putting him in apprehension of imminent harmful and offensive bodily contact.

54. The INDIVIDUAL DEFENDANTS' act of threatening the use of physical force against Plaintiff put Plaintiff in an apprehension of a battery from the INDIVIDUAL DEFENDANTS.

55. The INDIVIDUAL DEFENDANTS' act of threatening the use of physical force against Plaintiff would put a reasonable person aware of the circumstances of the incident in question in an apprehension of a battery from the INDIVIDUAL DEFENDANTS.

56. As a result of the Defendants' conduct, Plaintiff was caused to suffer personal injuries, physical pain, mental injuries, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, costs and expenses, and deprivation of his constitutional rights.

57. As a result of the foregoing, Plaintiff is entitled to compensatory damages and punitive damages against Defendants in an amount to be determined at trial.

THIRD CLAIM FOR RELIEF

STATE LAW – NEGLIGENT HIRING AND RETENTION AGAINST DEFENDANT THE CITY OF NEW YORK

58. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

59. Upon information and belief, Defendant THE CITY OF NEW YORK failed to use reasonable care in the hiring and retention of the DEFENDANT OFFICERS who participated in the assault, battery, use of excessive and unjustified force, and other violations of Plaintiff's constitutional rights in the manner described herein.

60. Defendant THE CITY OF NEW YORK knew, or should have known in the exercise of reasonable care, the propensities of the DEFENDANT OFFICERS to engage in the wrongful conduct heretofore alleged in this complaint.

61. As a result of the foregoing conduct, Plaintiff was caused to suffer personal injuries, physical pain, mental injuries, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, costs and expenses, and deprivation of his constitutional rights.

62. As a result of Defendant's impermissible conduct, Plaintiff demands judgment against Defendants in a sum of money to be determined at trial.

FOURTH CLAIM FOR RELIEF

STATE LAW – NEGLIGENT TRAINING AND SUPERVISION AGAINST DEFENDANT THE CITY OF NEW YORK

63. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

64. Upon information and belief, Defendant THE CITY OF NEW YORK failed to use reasonable care in the training and supervision of the aforesaid DEFENDANT OFFICERS who participated in the assault, battery, use of excessive and unjustified force, and other violations of Plaintiff's constitutional rights in the manner described herein.

65. Defendant THE CITY OF NEW YORK knew, or should have known that the requirements, guidelines, and terms of its training for the DEFENDANT OFFICERS were inadequate to prevent the DEFENDANT OFFICERS from engaging in the wrongful conduct against Plaintiff heretofore alleged in this complaint.

66. As a result of the foregoing conduct, Plaintiff was caused to suffer personal injuries, physical pain, mental injuries, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, costs and expenses, and deprivation of his constitutional rights.

67. As a result of Defendant's impermissible conduct, Plaintiff demands judgment against Defendants in a sum of money to be determined at trial.

FIFTH CLAIM FOR RELIEF

STATE LAW – NEGLIGENCE AGAINST THE INDIVIDUAL DEFENDANTS

68. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

69. The INDIVIDUAL DEFENDANTS, as a result of having Plaintiff in their custody, owed a duty to Plaintiff to prevent him from being subjected to assault, battery, and excessive and unjustified force.

70. The INDIVIDUAL DEFENDANTS, as a result of having Plaintiff in their custody, owed a duty to Plaintiff to protect him from physical harm.

71. The INDIVIDUAL DEFENDANTS breached this duty by allowing Plaintiff to be subject to assault, battery, and excessive and unjustified force while within their custody.

72. The INDIVIDUAL DEFENDANTS breached this duty by allowing Plaintiff to be physically injured while in their custody.

73. The INDIVIDUAL DEFENDANTS' breach of their duties to Plaintiff while Plaintiff was in their custody was the direct and proximate cause of Plaintiff's injuries.

74. As a result of the INDIVIDUAL DEFENDANTS' conduct, Plaintiff was caused to suffer personal injuries, physical pain, mental injuries, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, costs and expenses, and deprivation of his constitutional rights.

75. Accordingly, the Plaintiff demands judgment against Defendants in a sum of money to be determined at trial.

SIXTH CLAIM FOR RELIEF

STATE LAW – NEGLIGENCE
AGAINST THE DEFENDANT “JOHN DOE” POLICE OFFICERS

76. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

77. The Defendant “John Doe” POLICE OFFICERS, as a result of having Plaintiff in their custody, owed a duty to Plaintiff to prevent him from being subjected to assault, battery, and excessive and unjustified force.

78. The Defendant “John Doe” POLICE OFFICERS breached this duty by allowing Plaintiff to be subject to assault, battery, and excessive and unjustified force while within their custody.

79. The Defendant “John Doe” POLICE OFFICERS could have foreseen that breaching their duty of care owed to Plaintiff while Plaintiff was in their custody, would lead to Plaintiff being subjected to assault, battery, and excessive and unjustified force.

80. The Defendant “John Doe” POLICE OFFICERS’ breach of their duty owed to Plaintiff while Plaintiff was in their custody was the direct and proximate cause of Plaintiff being subjected to assault, battery, and excessive and unjustified force.

81. Plaintiff received both actual and substantial physical and mental injuries as a result of the Defendant “John Doe” POLICE OFFICERS’ breach of their duty owed to Plaintiff.

82. As a result of the Defendant “John Doe” POLICE OFFICERS’ conduct, Plaintiff was caused to suffer personal injuries, physical pain, mental injuries, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, costs and expenses, and deprivation of his constitutional rights.

83. As a result of the Defendant “John Doe” POLICE OFFICERS’ negligent conduct, Plaintiff demands judgment against Defendants in a sum of money to be determined at trial.

SEVENTH CLAIM FOR RELIEF

STATE LAW — RESPONDEAT SUPERIOR

84. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

85. The acts complained of were carried out by the aforementioned DEFENDANT OFFICERS in their capacities as police officers, officials, and agents of Defendant THE CITY OF NEW YORK.

86. As a result, the Plaintiff sustained serious physical, mental and emotional injuries, as well as other out of pocket damages.

87. The acts complained of were carried out by the aforementioned DEFENDANT OFFICERS in their capacities as police officers and officials in the course of their employment by Defendant THE CITY OF NEW YORK and the New York City Police Department, all under the supervision of ranking officers of said department.

88. As a result, Defendant THE CITY OF NEW YORK is liable to the Plaintiff for the injuries and other damages caused by its police officers, officials, and agents on a theory of *respondeat superior*.

89. As a result of the conduct of Defendant THE CITY OF NEW YORK, Plaintiff was caused to suffer personal injuries, physical pain, mental injuries, negligent

and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, costs and expenses, and deprivation of his constitutional rights.

90. As a result of the foregoing, Plaintiff is entitled to compensatory damages and punitive damages against the Defendants in amounts to be determined at trial.

EIGHTH CLAIM FOR RELIEF

PUNITIVE DAMAGES AGAINST THE DEFENDANT OFFICERS

91. The actions of the DEFENDANT OFFICERS constituted intentional violations of federal and state law.

92. The actions of the DEFENDANT OFFICERS were motivated by evil motive or intent, or involved involves reckless or callous indifference to the federal and state protected rights of Plaintiff.

93. As a result, Plaintiff is entitled to an award of punitive damages against the DEFENDANT OFFICERS in an amount to be determined at trial.

FEDERAL CLAIMS

NINTH CLAIM FOR RELIEF

DEPRIVATION OF FEDERAL CIVIL RIGHTS AGAINST ALL DEFENDANTS UNDER 42 U.S.C. § 1983

94. The DEFENDANTS deprived Plaintiff of the rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth, Fifth and and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

95. The DEFENDANT OFFICERS acted in their capacities as police officers, with all of the actual and/or apparent authority attendant thereto, pursuant to the customs, practices, procedures, and rules of Defendant THE CITY OF NEW YORK and the New

York City Police Department, all under the supervision of ranking officers of said department.

96. Defendant THE CITY OF NEW YORK and the New York City Police Department are responsible for the actions of their employees under the doctrine of *Monell v. City of New York Department of Social Services*, 436 U.S. 658 (1978), and/or the doctrine of respondeat superior.

97. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer personal injuries, physical pain, mental injuries, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, costs and expenses, and deprivation of his constitutional rights.

98. As a result, Plaintiff was damaged, harmed and injured, and seeks compensation in an amount to be determined at trial.

TENTH CLAIM FOR RELIEF

VIOLATION OF PLAINTIFF'S CONSTITUTIONAL RIGHTS UNDER 42 U.S.C. §1983 ARISING FROM THE INDIVIDUAL OFFICERS' USE OF EXCESSIVE FORCE

99. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

100. The INDIVIDUAL OFFICERS used force upon the Plaintiff that was unnecessary and unjustified under the circumstances. Plaintiff was subjected to excessive force in violation of his rights as guaranteed under the Fourth and Fourteenth Amendments to the United States Constitution.

101. The INDIVIDUAL OFFICERS' use of excessive force against Plaintiff caused Plaintiff significant and painful injuries.

102. As a result, Plaintiff was caused to suffer personal injuries, physical pain, mental injuries, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, costs and expenses, and deprivation of his constitutional rights.

103. As a result, Plaintiff seeks compensation in an amount to be determined at trial.

ELEVENTH CLAIM FOR RELIEF

VIOLATION OF PLAINTIFF'S CONSTITUTIONAL RIGHTS

UNDER 42 U.S.C. §1983

ARISING FROM THE INDIVIDUAL OFFICERS' BREACH OF THEIR DUTY TO PROTECT THE PLAINTIFF

104. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

105. The INDIVIDUAL OFFICERS arrested and restrained the Plaintiff and deprived him of his liberty.

106. In so doing, the INDIVIDUAL OFFICERS assumed a duty to protect the Plaintiff.

107. The INDIVIDUAL OFFICERS failed to protect the Plaintiff, in violation of his rights as guaranteed under the Fourth and Fourteenth Amendments to the United States Constitution.

108. As a result, Plaintiff was caused to suffer personal injuries, physical pain, mental injuries, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, costs and expenses, and deprivation of his constitutional rights.

109. As a result, Plaintiff seeks compensation in an amount to be determined at trial.

TWELFTH CLAIM FOR RELIEF

VIOLATION OF PLAINTIFF'S CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. §1983
ARISING FROM DEFENDANTS' FAILURE TO INTERVENE

110. The DEFENDANTS had an affirmative duty to intervene on Plaintiff's behalf to prevent the violation of his constitutional rights.

111. The DEFENDANTS failed to intervene on Plaintiff's behalf despite having had realistic opportunities to do so.

112. The DEFENDANTS failed to intervene on Plaintiff's behalf despite having substantially contributed to the circumstances within which Plaintiff's rights were violated by their affirmative conduct.

113. As a result of the aforementioned conduct of the DEFENDANTS, Plaintiff was caused to suffer personal injuries, physical pain, mental injuries, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, costs and expenses, and deprivation of his constitutional rights.

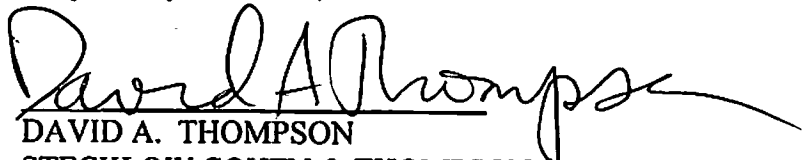
114. As a result, Plaintiff was damaged, harmed and injured, and seeks compensation in an amount to be determined at trial.

WHEREFORE and in light of the foregoing, it is respectfully requested that the Court assume jurisdiction and:

- a. Award appropriate compensatory and punitive damages.
- b. Empanel a jury.
- c. Award attorney's fees and costs.
- d. Award such other and further relief as the Court deems to be in the interest of justice.

DATED: New York, New York
April 15, 2013

Respectfully submitted,

A handwritten signature in black ink, appearing to read "David A. Thompson", written over a horizontal line.

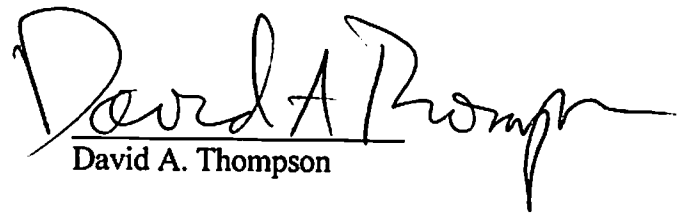
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ATTORNEY'S VERIFICATION

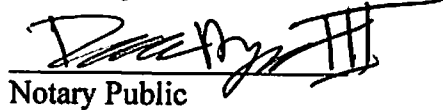
I, the undersigned, am an attorney admitted to practice in the Courts of New York State and I have read the annexed Complaint and know the contents thereof, and the same is true to my knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters I believe it to be true. The reason I make this verification and not plaintiff is because plaintiff is not in the county where the undersigned attorney has his office.

My belief, as to those matters therein not stated upon knowledge, is based upon the following: information contained in my file.

Dated: April 15, 2013
New York, N.Y.


David A. Thompson

Sworn to before me this 15th
day of April 2013


Notary Public

ISAAC JORDAN MYERS III
Notary Public, State of New York
Qualified In New York County
No. 02MY6270205
My Commission Expires 10-15-2016